

	Gobrial vs. Volkswagen Group of America, Inc. 30-2023-01329348	Pursuant to Defendant Volkswagen Group of America, Inc.'s Notice of Taking Motion to Compel Further Responses to Special Interrogatories Set One and Request for Monetary Sanctions Against Plaintiff and Plaintiff's Counsel Off Calendar filed February 26, 2024, (ROA #88), and Defendant Volkswagen Group of America, Inc.'s Notice of Taking Motion to Compel Further Responses to Requests for Admission Set One and Request for Monetary Sanctions Against Plaintiff and Plaintiff's Counsel Off Calendar filed February 26, 2024, (ROA #90), these matters are taken OFF CALENDAR.
5	Hughes vs. Hughes 30-2022-01239731	<u>Motion for Reconsideration</u> <u>Motion for Reconsideration</u> Plaintiff Albert Hughes III's Motion for Reconsideration Regarding Court's Ruling to Plaintiff's Motion for Peace Officer Records and Files (Pitchess) is DENIED. Plaintiff Albert Hughes III moves for reconsideration of the court's order granting in part and denying party Plaintiff Albert Hughes III's Motion for Discovery of Peace Officer Personnel Records pursuant to <i>Pitchess v. Superior Court</i> (1974) 11 Cal.3d 531. <u>Standard for Reconsideration</u> Civil Procedure Code section 1008 states that: When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may . . . make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. (Civil Proc. Code, § 1008, subd. (a), italics added.) The motion for reconsideration must be made "within 10 days after service upon the party of written notice of entry of the order". (<i>Ibid.</i>) In addition, a party may only seek reconsideration "based upon new or different facts, circumstances,

	or law.” (<i>Ibid.</i>) Thus, a court acts in excess of jurisdiction when it grants a motion to reconsider that is not based upon “new or different facts, circumstances or law.” (<i>Gilberd v. AC Transit</i> (1995) 32 Cal.App.4th 1494, 1499.) However, “[a] rule that would allow the reopening of cases previously decided, simply because a party identifies evidence that it could have presented at trial, but did not, would in a large measure vitiate the effects of the rules of res judicata.” (<i>In re H.S.</i> 188 Cal.App.4th 103, 108, quoting <i>Kulchar v. Kulchar</i> (1969) 1 Cal.3d 467,472.) Therefore, “the party seeking reconsideration must provide not only new evidence but also a satisfactory explanation for the failure to produce that evidence at an earlier time.” (<i>Blue Mountain Development Co. v. Carville</i> (1982) 132 Cal.App.3d 1005, 1013; see also <i>Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC</i> (2015) 61 Cal.4th 830, 833 [“A party filing a renewed application [pursuant to Section 1008] must . . . show diligence with a satisfactory explanation for not presenting the new or different information earlier”].) As the Court of Appeal has explained, this means that the “[new] information must be such that the moving party could not, with reasonable diligence, have discovered or produced it” with respect to the prior motion. (<i>New York Times Co. v. Superior Court</i> (2005) 135 Cal.App.4th 206, 212–213.) Civil Procedure Code section 1008 “is the exclusive means for modifying, amending, or revoking an order. That limitation is expressly jurisdictional.” (<i>Gilberd v. AC Transit, supra</i>, 32 Cal.App.4th at p. 1499.) <u>New Facts, Circumstances, or Law</u> Plaintiff contends that there are several new facts that support the court reconsidering its prior ruling. These are: • At the September 25, 2023 hearing, Plaintiff stated that he was unaware of the entirety of what was in Defendant Albert Hughes Jr.’s Los Angeles Sheriff’s Department (LASD) personnel file. (See Declaration of Albert Hughes III, Esq.
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		(Hughes Decl.), ¶ 4.) Plaintiff contends that this statement may have been misconstrued to mean that he was unaware of the contents of Defendant's file. • Plaintiff declares that he is Defendant's son and has personal knowledge that the Defendant has had complaints of excessive force and sexual abuse complaints against him. Plaintiff also has personal knowledge that the LASD Internal Affairs Department has investigated and punished Defendant for various complaints. (See Hughes Decl., ¶ 4.) • Plaintiff has a reasonable belief that Defendant's LASD personnel file contains information showing a lack of credibility, falsifying police reports, prior acts involving moral turpitude, and information showing illegal detentions, arrests, searches, and seizures. (See Hughes III Decl., ¶ 4.) These facts do not qualify as "new" under Civil Procedure Code section 1008. Plaintiff fails to provide a "satisfactory explanation for the failure to produce that evidence at an earlier time" nor does he explain why, he "could not with reasonable diligence, have discovered or produced" this evidence at the time of the original motion. As Plaintiff asserts, he has personal knowledge of this information and thus, could have been expected to present it at the first possible date. In addition, Plaintiff provides this new information in a general, conclusory manner without providing any supporting facts or details. The documents attached to Plaintiff's declaration do not squarely support the assertions made in Plaintiff's declaration. The Los Angeles County Sheriff's Department shall give notice of this ruling.
6	M.V. Partners vs. Spectra Yoga, LLC 30-2022-01254798	<u>Motions to Compel Discovery</u> Plaintiff M.V. Partners' Motion to Compel Response to Post Judgment Debtor Written Interrogatories Against Defendant Aileen Pham is GRANTED.